IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

C.P (CAA) No. 36/BB/2017,
C.P (CAA) No. 49/BB/2017,
&C.P (CAA) No. 50/BB/2017
U/sec.230-232 r/w Sec. 66 of the Companies Act, 2013
Orders Delivered on: 22nd December, 2017

IN THE MATTER OF COMPOSITE SCHEME OF ARRANGEMENT OF

MANIPAL HOSPITALS (WHITEFIELD) PRIVATE LIMITED

AND

MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED

AND
MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Coram: Hon'ble Shri RatakondaMurali, Member (Judicial)
Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

Manipal Hospitals (Whitefield) Private Limited
No. 98/2, Rustombagh,
HAL Airport Road,
Bengaluru-560017 **Petitioner in CP(CAA)No.36/BB/17**

Manipal Health Enterprises Private Limited

No. 98/2, Rustombagh,
Hal Airport Road,
Bengaluru-560017 **Petitioner in CP(CAA)No.49/BB/2017**

Manipal Hospitals (Jaipur) Private Limited
No. 98/2, Rustombagh,
HAL Airport Road,
Bengaluru-560017 **Petitioner in CP(CAA)No.50/BB/2017**

Parties Present :
1) Mr. Saji P.John, Advocate
SPJ Legal, Unit No.1002,
10th Floor, # 30, Prestige Meridian II M G Road,
Bengaluru 560001
Advocate for the Petitioner Companies
2) Ms.Sinchana M. R., Advocate
For Regional Director / Registrar of Companies
3) Official Liquidator represented by Assistant.

Per: **Hon'ble Shri RatakondaMurali, Member (Judicial)** – Author
Heard on: 15.09.2017, 30.10.20 10.11.2017, 30.11.2017

COMMON ORDER

These Company Petitions are filed by Manipal Hospitals (Whitefield) Private Limited (CP (CAA) NO. 36/BB/2017), Manipal Hospitals (Jaipur) Private Limited (CP (CAA) NO. 50/BB/2017) and Manipal Health Enterprises Private Limited (CP (CAA) NO. 49/BB/2017) under Section 230 and 232 r/w Section 66 of the Companies Act, 2013 praying to order for sanctioning the Composite Scheme of Arrangement among the companies **MANIPAL HOSPITALS (WHITEFIELD) PRIVATE LIMITED** (Petitioner Company in CP(CAA)No. 36/BB/17), **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** (Petitioner Company in CP(CAA)No. 49/BB/17) and **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** (Petitioner Company in CP(CAA)No. 50/BB/17) which shall be binding upon all the Shareholders and Creditors of the Petitioner Companies.

The averments made in the Company Petitions are briefly described hereunder:-

The Petitioner Companies seek an order for sanctioning the Composite Scheme of Arrangement among the companies **MANIPAL HOSPITALS (WHITEFIELD) PRIVATE LIMITED** (Petitioner Company in CP (CAA)No. 36/BB/17), **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** (Petitioner Company in CP(CAA)No. 49/BB/17) and **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** (Petitioner Company in CP(CAA)No. 50/BB/17). The composite scheme of Arrangement is shown in **Annexure –A.**

The **MANIPAL HOSPITALS (WHITEFIELD) PRIVATE LIMITED** (petitioner in CP (CAA) No. 36/BB/2017) was incorporated on January 13, 2014 under the provisions of Companies Act, 1956 under the name and style "Manipal Hospitals (Whitefield) Private Limited", with the Registrar of Companies, Karnataka vide CIN No. U85110KA2014PTC073036 having its Registered office at No. 98/2, Rustombagh, HAL Airport Road, Bengaluru - 560 017.

The main objects of the **Manipal Hospitals (Whitefield) Private Limited** as set out in its Memorandum of Association are, inter alia, as follows:

1. To carry on the business of healthcare services, establishing, promoting and maintaining hospitals, multi-specialty health hospitals, ICCUs, healthcare centres, nature care centres, polyclinics, surgical centres, laboratories and research centres, diagnostic centres, fitness centres, healthcare townships with

pathology, radiology, micro-biology, bio-chemistry, CT scan, ultrasonography and other modern facilities for treatment, prevention, detection and cure of diseases, ailments of all kinds in India and abroad.

2. To conduct, research, investigation, studies and surveys in medicine, biology, anatomy, bio – chemistry, bio – engineering, medico-engineering, dentistry, pharmacy, pharmacology and to impart education in the above facilities by operating schools, colleges, clinics, workshops, research centers, etc and to establish and operate schools, colleges, technical institutions, medical colleges, dental colleges, veterinary colleges, institutions to impart training in nursing, physical education, yoga, skin and beauty enhancement, home science, etc and to design, develop, process, provide, manage, maintain, promote, acquire, purchase, undertake, improve, equip, initiate, encourage, subsidize and organize and generally to conduct the business of services for development of special purpose clinics, including centers such as industrial and of health care its management utilization of related services, consulting services, paramedic clinics, community health centers, immunization centers.

3. To design, develop process, provide, manage, maintain, promote, acquire, purchase, undertake, improve, equip, initiate, encourage, subsidize and organize and generally to conduct the business of programs and services to educate, monitor and manage health. and to design, develop, process, provide, manage, maintain, promote, acquire, purchase, undertake, improve, equip, initiate, encourage, subsidize and organize and generally to conduct the business of networks of high quality providers to provide healthcare services and specialty networks, and professional demand management programs for medical professionals to receive on demand specific information related to specific diagnoses and to carry on the business of dealers, manufacturers, importer, exporter and trader of medicines, medical equipment, anatomical, orthopedic and surgical instruments and appliances of all kinds and to carry on the business of artificial eye and limb makers, bandage makers, crutch chair and stretcher makers, carriage makers, chemist and druggists and providers, suppliers for hospitals, patient care and invalids and to establish, promote or concur in establishing or promoting any Company or companies in India and

/or outside India for the pursuance of any or all of the business as set out above.

The Copy of Certificate of Incorporation, Memorandum and Articles of Association of the Petitioner Company in CP (CAA) 36/BB/2017 are shown in **Annexure – B**

The Authorised Capital of the Petitioner Company in CP(CAA)No. 36/BB/2017 is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each and the Issued, Subscribed and Paid-Up Capital is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each fully paid up as on 31st March, 2016. The Copy of Audited Balance Sheet as on 31st March, 2016 of the Petitioner Company in CP (CAA) 36/BB/2017 is shown in **ANNEXURE – C.**

The **Manipal Health Enterprises Private Limited (petitioner in CP (CAA) No. 49/BB/2017)** was incorporated on 15th February, 2010 under the provisions of the Companies Act, 1956 under the name of "**Manipal Health Enterprises Private Limited**" with the Registrar of Companies, Karnataka vide CIN No. U85110KA2010PTC052540 having its Registered office at No. 98/2, Rustombagh, HAL Airport Road, Bengaluru - 560 017.

The main objects of the **Manipal Health Enterprises Private Limited** as set out in its Memorandum of Association are, inter alia, as follows:

1. To carry on the business of healthcare services, establishing, promoting and maintaining hospitals, multi-specialty health hospitals, ICCUs, healthcare centres, nature care centres, polyclinics, surgical centres, laboratories and research centres, diagnostic centres, fitness centres, healthcare townships with pathology, radiology, micro-biology, bio-chemistry, CT scan, ultrasonography and other modern facilities for treatment, prevention, detection and cure of diseases, ailments of all kinds in India and abroad .

2. To conduct, research, investigation, studies and surveys in medicine, biology, anatomy, bio – chemistry, bio – engineering, medico- engineering, dentistry, pharmacy, pharmacology and to impart education in the above facilities by operating schools, colleges, clinics, workshops, research centers, etc and to establish and operate schools, colleges, technical institutions, medical colleges, dental colleges, veterinary colleges, institutions to impart training in nursing, physical education, yoga, skin and beauty enhancement, home

science, etc and to design, develop, process, provide, manage, maintain, promote, acquire, purchase, undertake, improve, equip, initiate, encourage, subsidize and organize and generally to conduct the business of services for development of special purpose clinics, including centers such as industrial and of health care its management utilization of related services, consulting services, paramedic clinics, community health centers, immunization centers.

3. To design, develop process, provide, manage, maintain, promote, acquire, purchase, undertake, improve, equip, initiate, encourage, subsidize and organize and generally to conduct the business of programs and services to educate, monitor and manage health. and to design, develop, process, provide, manage, maintain, promote, acquire, purchase, undertake, improve, equip, initiate, encourage, subsidize and organize and generally to conduct the business of networks of high quality providers to provide healthcare services and specialty networks, and professional demand management programs for medical professionals to receive on demand specific information related to specific diagnoses and to carry on the business of dealers, manufacturers, importer, exporter and trader of medicines, medical equipment, anatomical, orthopedic and surgical instruments and appliances of all kinds and to carry on the business of artificial eye and limb makers, bandage makers, crutch chair and stretcher makers, carriage makers, chemist and druggists and providers, suppliers for hospitals, patient care and invalids and to establish, promote or concur in establishing or promoting any Company or companies in India and / or outside India and the pursuance of any or all of the business as set out above.

The Copy of Certificate of Incorporation, Memorandum and Articles of Association of the Petitioner Company in CP (CAA) 49/BB/2017 are shown in **Annexure – B**

The Authorised Capital of the Petitioner Company in CP (CAA) No. 49 /BB/2017 as stated in the Petition as below:

Authorized Capital	**Amount (in Rs.)**
7,50,00,000 Equity Shares of Rs. 10/- each	75,00,00,000
6,00,00,000 0.01% Compulsorily Convertible Preference Shares of Rs. 10/- each	60,00,00,000
Total	1,35,00,00,000
Issued, Subscribed and Paid-up Capital	
6,86,89,089 Equity Shares of Rs. 10/- each fully paid-up	68,68,90,890
Less : Amount recoverable from MHEWT (6,81,720 Equity Shares of Rs. 10/- each)	(68,17,200)
6,80,07,369 Equity Shares of Rs. 10/- each – fully paid-up	68,00,73,690

The Copies of Audited Balance Sheet as on 31st March, 2016 of the Petitioner Company in CP (CAA) 49/BB/2017 is shown in **ANNEXURE – C**.

The **Manipal Hospitals (Jaipur) Private Limited (petitioner in CP (CAA) No. 50/BB/2017)** was incorporated on January 17, 2014 under the provisions of the Companies Act, 1956 under the name of **"Manipal Hospitals (Jaipur) Private Limited"** with the Registrar of Companies, Karnataka vide CIN No. U85110KA2014PTC073085 having its Registered office at No. 98/2, Rustombagh, HAL Airport Road, Bengaluru - 560 017.

The main objects of the **Manipal Hospitals (Jaipur) Private Limited** as set out in its Memorandum of Association are, inter alia, as follows:

1. To carry on the business of healthcare services, establishing, promoting and maintaining hospitals, multi-specialty health hospitals, ICCUs, healthcare centres, nature care centres, polyclinics, surgical centres, laboratories and research centres, diagnostic centres, fitness centres, healthcare townships with pathology, radiology, micro-biology, bio-chemistry, CT scan, ultrasonography and other modern facilities for treatment, prevention, detection and cure of diseases, ailments of all kinds in India and abroad.

2. To conduct, research, investigation, studies and surveys in medicine, biology, anatomy, bio – chemistry, bio – engineering, medico-engineering, dentistry, pharmacy, pharmacology and to impart education in the above facilities by

operating schools, colleges, clinics, workshops, research centers, etc and to establish and operate schools, colleges, technical institutions, medical colleges, dental colleges, veterinary colleges, institutions to impart training in nursing, physical education, yoga, skin and beauty enhancement, home science, etc and to design, develop, process, provide, manage, maintain, promote, acquire, purchase, undertake, improve, equip, initiate, encourage, subsidize and organize and generally to conduct the business of services for development of special purpose clinics, including centers such as industrial and of health care its management utilization of related services, consulting services, paramedic clinics, community health centers, immunization centers.

3. To design, develop process, provide, manage, maintain, promote, acquire, purchase, undertake, improve, equip, initiate, encourage, subsidize and organize and generally to conduct the business of programs and services to educate, monitor and manage health. And to design, develop, process, provide, manage, maintain, promote, acquire, purchase, undertake, improve, equip, initiate, encourage, subsidize and organize and generally to conduct the business of networks of high quality providers to provide healthcare services and specialty networks, and professional demand management programs for medical professionals to receive on demand specific information related to specific diagnoses and to carry on the business of dealers, manufacturers, importer, exporter and trader of medicines, medical equipment, anatomical, orthopedic and surgical instruments and appliances of all kinds and to carry on the business of artificial eye and limb makers, bandage makers, crutch chair and stretcher makers, carriage makers, chemist and druggists and providers, suppliers for hospitals, patient care and invalids and to establish, promote or concur in establishing or promoting any Company or companies in India and / or outside India and / or outside India for the pursuance of any or all of the business as set out above.

The Copy of Certificate of Incorporation, Memorandum and Articles of Association of the Petitioner Company in CP (CAA) 50/BB/2017 are shown in **Annexure – B**

The Authorised Capital of the petitioner Company in CP(CAA)No. 50/BB/2017 is Rs. 1,00,01,00,000/- divided into 10,00,10,000 equity shares of Rs. 10/- each and the

Issued, Subscribed and Paid-Up Capital is Rs. 1,00,01,00,000/- divided into 10,00,10,000 equity shares of Rs. 10/- each fully paid up. The Copies of Audited Balance Sheet as on 31st March, 2016 of the Petitioner Company in CP (CAA) 50/BB/2017 is shown in **ANNEXURE – C**.

The Board of Directors of the Petitioner Companies have approved and adopted the Scheme of Arrangement at its respective meeting held on 20/01/2017. The copies of Board Resolution is shown in **ANNEXURE – H** in the respective Company petitions in CP (CAA) 36/BB/17, CP (CAA)49/BB/17, CP(CAA)50/BB/17.

The Petitioner Company in CP (CAA) 36/BB/17 had filed Company Application No. (CAA) NO 34/BB of 2017 before this Tribunal for dispensation of the meetings of the shareholders and Creditors and same was allowed vide order dated 13/07/2017. The Copy of the order dated 13/07/2017 passed by this Tribunal in CA (CAA) No. 34/BB of 2017 is produced along with the petition at **ANNEXURE – J.**

The Petitioner Company in CP (CAA) 49/BB/17 had filed Company Application No. (CAA) 35/BB/2017 before this Tribunal for convening separate meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Petitioner Company and the same was allowed vide order dated 13/07/2017 and the Copy of the order dated 13/07/2017 passed by this Tribunal in CA (CAA) No. 35/BB of 2017 is produced along with the petition at **ANNEXURE – J.** In pursuant to the same Chairman appointed for convening the respective meetings of Equity shareholders, secured and Unsecured Creditors had submitted respective reports stating that the scheme was unanimously approved by the Equity shareholders, Secured creditors and in respect of Unsecured Creditors the same was approved with requisite majority and the report was filed along with memo dated 26.10.2017.

Similarly, the Petitioner Company in CP (CAA) 50/BB/17 had filed Company Application No. (CAA) 33/BB/2017 before this Tribunal for convening meeting of Secured Creditors and dispense with the convening the meetings of the Equity Shareholders, Unsecured Creditors of the Company and the same was allowed vide order dated 13/07/2017 and the Copy of the order dated 13/07/2017 passed by this Tribunal in CA (CAA) No. 33/BB of 2017 is produced along with the petition at **ANNEXURE – J.**

In pursuant to the same Chairman appointed for convening the meetings of secured creditors had submitted report stating that the scheme was unanimously

approved by the Secured creditors and the report was filed along with memo dated 26.10.2017.

The petitioner Company in CP (CAA) 36/BB/17 was directed by this tribunal to issue notice to Regional Director, Registrar of companies, Deputy Commissioner of Income Tax and Official Liquidator and also was directed to take out paper publication in the financial express, English daily Bangalore edition and Udayavani, Kannada daily fixing the date of hearing on 03.10.2017.

In pursuant to the same the counsel for the petitioner has filed compliance affidavit dated 18.09.2017 of the authorized signatory of the petitioner company for carrying out the advertisement and issuance of notices to Regional Director, South East Region, Ministry of Corporate Affairs, Hyderabad, Registrar of companies Karnataka at Bangalore, Deputy Commissioner of Income Tax and Official Liquidator. The copies of paper publication are shown in Annexure B1 and B2.

The petitioner Companies in CP (CAA) 49/BB/17 and CP(CAA) 50/BB/17 was directed by this tribunal to issue notice to Regional Director, Registrar of companies and concerned Income Tax Assessing Officers and also was directed to take out paper publication in The Hindu, English daily Bangalore edition and Udayavani, Kannada daily fixing the date of hearing on 30.10.2017.

In pursuant to the same the counsel for the petitioners have filed compliance affidavits dated 03.10.2017 of the authorized signatories of the petitioner companies in CP (CAA) 49/BB/17 and CP (CAA) 50/BB/17 for carrying out the advertisement and issuance of notices to Regional Director, South East Region, Ministry of Corporate Affairs, Hyderabad, Registrar of companies Karnataka at Bangalore, and concerned Income Tax Authority.

The Registrar of Companies, Karnataka Bangalore vide its letter bearing No: ROCB/Legal/CAA/36/BB/2017 filed on 06.11.2017 wherein he has stated that-

> "The Company Manipal Hospitals (Jaipur) Private Limited made reduction of Equity Share capital as a part of the scheme of arrangement and it is clarified that reduction of Equity share capital is for zero consideration and it involves complete extinguishment of liability of Manipal Hospitals (Jaipur) Private Limited towards such equity share. The company have made the reduction of equity share capital as a part of the scheme itself and not under a separate procedure in terms of section 66 of the Act and they have not filed any e-forms for the

reduction of share capital separately under the provision of the Act. Annexure F of Article No. 4 of the Articles of Association of the Company permits reduction of share capital of the Company. The petition may be decided on merits".

Counsel for the petitioner in CP(CAA)50/BB/17 has filed a reply affidavit dated 29.11.2017 of Authorised signatory of the Petitioner Company wherein it is stated that :-

"The scheme is a composite envisaging capital reduction of Manipal Hospitals (Jaipur) Private Limited. The reduction of capital shall be effected as a part of the Scheme under Section 230 to 232 read with Section 66 of the Companies Act, 2013 and not under a separate procedure in terms of Section 66 of the Companies Act, 2013. The Petitioner Company undertakes to file the order along with the Scheme with the Registrar of companies.

It is further submitted that the provisions of Section 230-232 of the Companies Act, 2013 is a code by itself and the scope of the Sections 230-232 of the Companies Act, 2013 is very wide and comprehensive i.e. the provisions do not restrict the applicability of provisions of Section 230-232 of the Companies Act, 2013 not only to amalgamation but also includes demerger, hive-off, compromise with Creditors, change of name, reduction of capital and any other related matters. In the past Hon'ble High Court(s) have held that the provisions contained in Section 391 of Companies Act, 1956 (equivalent section under the erstwhile Companies Act, 1956) are a complete code in itself. Thus, no separate petition is necessary for reduction of capital which is a part of Scheme of Arrangement.

It is further submitted that all the equity shareholders and creditors, as applicable of the Petitioner Company have approved the Scheme in entirety by way of consent affidavits and the same shall be considered as deemed approval for capital reduction. As the reduction of the capital is undertaken under Section 230 to 232 read with Section 66 of the Companies Act, 2013, the Petitioner Company is not required to file any separate e-forms for the reduction of share capital provided under Section 66 of Companies Act, 2013".

The Regional Director, South East Region, Ministry of Corporate Affairs, Hyderabad has filed its affidavit dated 29.09.2017 submitting that the proposed scheme and other material paper have been examined and this Hon'ble Tribunal may be please to dispose of the petition on merits.

On the prayer made by the Official Liquidator in OLR 139/17 in CP(CAA)36/BB/17 Sri. B.K. Krishna Prasad, Chartered Accountant was appointed to scrutinize the books of accounts and records of the Petitioner Company in CP (CAA) 36/BB/17. OL has filed report bearing No. OLR 188/17 enclosing the copy of the report dated 06.11.2017 of the Chartered Accountant which is marked as **Annexure-A** of the report wherein the Chartered Accountant has concluded his report that-

i. We have obtained all the information and explanation, which to the best of our knowledge and belief were necessary for the purpose of this report and based on the same we report that.
ii. On verification of the books and records maintained and according to the information and explanations obtained from the Company, we are of the opinion that:
iii. The company has maintained proper books of accounts, statutory registers and records as required by the Companies Act, 2013.
iv. The Affairs of the Company have not been conducted in a manner prejudicial to the interests of its members of general public.

The Petitioner Company in CP (CAA) No. 36/BB/17 has stated in the petition that the Accounting treatment under the scheme pursuant to clause-10 of the scheme is in accordance with section 133 of the Companies Act, 2013. The Accounting Treatment Certificate **dated 19th July, 2017** of the statutory Auditor in this regard is as shown in **Annexure-K** wherein it is stated that no accounting treatment has been specified for the petitioner company in the enforced Scheme, as the petitioner company will be amalgamated into Manipal Health Enterprises Private Limited. Further as per clause 13 of the scheme the petitioner company will stand dissolved without being wound-up.

The Petitioner Company in CP (CAA) No. 49/BB/17 has stated in the petition that the Accounting treatment under the scheme pursuant to clause-10,22,31 of the scheme is in accordance with section 133 of the Companies Act, 2013. The Accounting Treatment

Certificate **dated 08th July, 2017** of the statutory Auditor in this regard is as shown in **Annexure-K** wherein it is stated that the proposed Accounting treatment specified in Clause-10, 22, &31 of the scheme, is in compliance with Accounting standards prescribed under section 133 of the Companies Act, 2013 r/w Companies (Indian Accounting Standards) Rule 2015 (as amended from time to time) and other generally accepted Accounting Principles.

The Petitioner Company in CP (CAA) No. 50/BB/17 has stated in the petition that the Accounting treatment under the scheme pursuant to clause-21&32 of the scheme is in accordance with section 133 of the Companies Act, 2013. The Accounting Treatment Certificate **dated 08th July, 2017** of the statutory Auditor in this regard is as shown in **Annexure-K** wherein it is stated that the proposed Accounting treatment specified in Clauses-21, &32 of the scheme, is in compliance with Accounting standards prescribed under section 133 of the Companies Act, 2013 r/w Companies (Indian Accounting Standards) Rule 2015 (as amended from time to time) and other generally accepted Accounting Principles.

After hearing the Counsel for the Petitioner Companies and considering the material on record the Scheme appears to be fair, reasonable and is not detrimental against the Members or Creditors or contrary to public policy,

THIS TRIBUNAL DO FURTHER ORDER

While Approving the Scheme, we make clear that this order should not be construed as an order in any way granting exemption from payment of Stamp Duty, taxes or any other charges, if any, and payment in accordance with law or in respect to any permission/ compliance with any other requirement, which may be specially required under any law.

The Whole of the property, rights and powers of the entire Undertaking of the Petitioner Company **MANIPAL HOSPITALS (WHITEFIELD) PRIVATE LIMITED** in CP(CAA)No.36/BB/17 be transferred without further act or deed to the Petitioner Company **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED in CP(CAA)49/BB/17** and accordingly the same shall pursuant to section 232 of the Companies Act, 2013, be transferred to and vest in the Petitioner Company

MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED for all the state and interest of the whole of Undertaking of the Petitioner Company **MANIPAL HOSPITALS (WHITEFIELD) PRIVATE LIMITED** therein but subject nevertheless to all the charges now affecting the same; and

The Whole of the property, rights and powers of the Vijayawada Unit of **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** to be transferred without further act or deed to the **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** and accordingly the same shall pursuant to section 232 of th Companies Act, 2013, be transferred to and vest in the **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** for all the state and interest of the Vijayawada Unit of the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** therein but subject nevertheless to all the charges now affecting the same; and

The Whole of the property, rights and powers of the Jaipur Unit of **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** to be transferred without further act or deed to the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** and accordingly the same shall pursuant to section 232 of th Companies Act, 2013, be transferred to and vest in the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** for all the state and interest of the Jaipur Unit of the **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** therein but subject nevertheless to all the charges now affecting the same; and

All the liabilities including taxes and charges, if any and duties of the entire Undertaking of the **MANIPAL HOSPITALS (WHITEFIELD) PRIVATE LIMITED** be transferred without further act or deed to the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** and accordingly the same shall pursuant to section 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED**; and

All the liabilities including taxes and charges, if any and duties of the Vijayawada Unit of **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** be transferred without further act or deed to the **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** and accordingly the same shall pursuant to section 232 of the Companies Act,

2013, be transferred to and become the liabilities and duties of the **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED**; and

All the liabilities including taxes and charges, if any and duties of the Jaipur Unit of **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** be transferred without further act or deed to the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** and accordingly the same shall pursuant to section 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED**; and

The tax implications, if any, arising out of the scheme is subject to final decision of Concerned Tax Authorities and the decision of the Concerned Tax Authorities shall be binding.

All Proceedings now pending by or against the whole of the undertaking of **MANIPAL HOSPITALS (WHITEFIELD) PRIVATE LIMITED** to be continued by or against the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED**, if any; and

All Proceedings now pending by or against Vijayawada Unit of **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** to be continued by or against the **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED**, if any; and

All Proceedings now pending by or against Jaipur Unit of **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** to be continued by or against the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED**, if any; and

The Petitioner Companies shall within thirty days of the date of the receipt of this order cause a certified copy of this order along with a copy of Scheme of Arrangement to be delivered to the Registrar of Companies for registration in accordance with Rule 25 (7) of Companies (Compromises, Arrangements & Amalgamations) Rules, 2016.

The Scheme shall be effective from the appointed date as mentioned in the Scheme of Arrangement i.e., 1st January, 2017.

The **MANIPAL HOSPITALS (WHITEFIELD) PRIVATE LIMITED** or its authorised signatory is directed that after the completion of the process of Arrangement to

handover the possession of the Books of Accounts and other relevant documents of the entire undertaking of the **MANIPAL HOSPITALS (WHITEFIELD) PRIVATE LIMITED** Company to the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** for the purpose of section 239 of the Companies Act, 2013.

The **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** or its authorised signatory is directed that after the completion of the process of Arrangement to handover the possession of the Books of Accounts and other relevant documents of the Vijayawada Undertaking of the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** to the **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** for the purpose of section 239 of the Companies Act, 2013.

The **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** or its authorised signatory is directed that after the completion of the process of Arrangement to handover the possession of the Books of Accounts and other relevant documents of the Jaipur Undertaking of the **MANIPAL HOSPITALS (JAIPUR) PRIVATE LIMITED** to the **MANIPAL HEALTH ENTERPRISES PRIVATE LIMITED** for the purpose of section 239 of the Companies Act, 2013.

Any person shall be at the liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

27/12/17

(RATAKONDA MURALI)
MEMBER, JUDICIAL